

must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”).

A plaintiff can demur to an answer on the grounds that, inter alia, the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc. § 430.20(a).) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.” (South Shore Land Co. v. Petersen (1964) 226 Cal. App. 2d 725, 732.) A determination of the sufficiency of an answer requires an examination of the complaint because the adequacy of the answer is with reference to the complaint it purports to answer. (Id. at 733.)

Here, Plaintiff generally demurs to Defendants’ 1st and 3rd - 9th affirmative defenses in their First Amended Answer.

The Court finds that Defendants adequately plead the ultimate facts to support these affirmative defenses.

In addition, with respect to Plaintiff’s special demurrer, Plaintiff has not shown that the affirmative defenses are so confusingly pled that they cannot determine what issues Defendants are raising. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

Plaintiff’s general and special demurrers are overruled.

Defendants shall give notice.